

**SUBSTITUTE FOR
SENATE BILL NO. 502**

A bill to amend 1931 PA 328, entitled
"The Michigan penal code,"
by amending section 543m (MCL 750.543m), as added by 2002 PA 113.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 543m. (1) A person is guilty of making a terrorist threat
2 or of making a false report of terrorism if the person does ~~either~~
3 **any** of the following:

4 (a) Threatens to commit an act of terrorism and communicates
5 the threat to any other person **knowing that the communication would**
6 **be viewed as threatening violence.**

7 (b) Threatens to commit an act of terrorism and communicates
8 the threat with reckless disregard of a substantial risk that the
9 communication would be viewed as threatening violence.



1 **(c)** ~~(b)~~ Knowingly makes a false report of an act of terrorism
2 and communicates the false report to any other person, knowing the
3 report is false.

4 (2) It is not a defense to a prosecution under this section
5 that the defendant did not have the intent or capability of
6 committing the act of terrorism.

7 (3) A person who violates this section is guilty of a felony
8 punishable by imprisonment for not more than 20 years or a fine of
9 not more than \$20,000.00, or both.

10 **(4) As used in this section, "reckless disregard" means to**
11 **consciously disregard a substantial and unjustifiable risk that a**
12 **communication will be viewed as threatening violence.**

13 Enacting section 1. This amendatory act takes effect 90 days
14 after the date it is enacted into law.